



GLOCAL: Decolonizing Politics

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Land Restitution and Sovereignty

Six Nations of the Grand River

Why land claims in Canada remain unresolved

The Issue

Haldimand Proclamation promised land
Land gradually:
• Reduced
• Sold
• Taken
Ongoing case - Six Nations of the Grand River vs Canada (1995 - present)

Who controls the land: the crown or the Haudenosaunee?

Key Concepts

Settler Colonialism
• Patrick Wolfe
• On going system - control land

Sovereignty
• Andrea Simpson
• Never ceded

Rights Gap
• United Nations Declaration on the Rights of Indigenous Peoples
• Consent ≠ Consultation

Land Restitution as a Process



Contradictions

Allies vs Reality
• Premised alliance → land loss

Sovereignty vs Control
• Indigenous sovereignty vs Crown authority

• Protection vs Exploitation
Protection claims → land theft

Legal vs Indigenous Law
• Crown law dominates

Consultation vs Consent
• Consultation ≠ real decision-making

Restitution vs Justice
• Compensation ≠ land back

Gaps - What is Missing?

Current Focus
• State law and legal frameworks
• Government policy and claims processes
• Court rulings and litigation outcomes

Missing Perspectives
• Haudenosaunee governance systems and decision-making structures
• Indigenous legal traditions and understandings of sovereignty
• Community voices, lived experiences, and land-based relationships



Whose Voices?

Included
• Government
• Courts
• Policy
• Experts

Missing?
• Indigenous perspectives
• Community knowledge
• Traditional governance

Why It Matters

• Claims are managed, not resolved
• Land treated as legal issue
• Sovereignty ignored
• **LAND INJUSTICE IS ONGOING**

Decolonial Approach

Shift 1	Shift 2	Shift 3
Land + relationship not property	Sovereignty + ongoing	Dispossession + continuous

Challenges states authority + redefines justice

Literature & Policy Scan

Land Governance and Six Nations

- Conflicts arising from the 1784 Haldimand Proclamation, which granted territory along the Grand River
- Reduce land base by:
 - ◆ Sales of colonial land
 - ◆ The invasion of settlers
 - ◆ State approved eviction
 - ◆
- Many transaction were disputed or unlawful, but colonial officials ultimately have them legitimacy
 - ◆ Highlights inconsistencies in the Crowns assertions of legitimate governance

Key Concepts and Debates

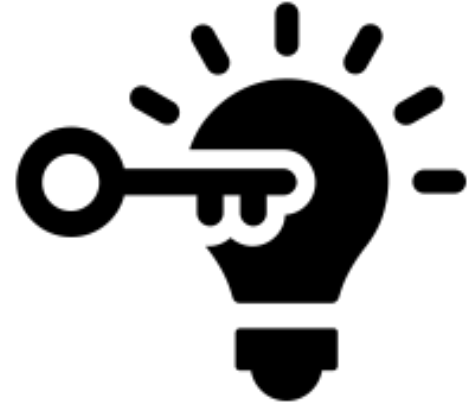
Settler Colonialism & Sovereignty

- Settler Colonialism = ongoing structure, not past event
- Land Disputes are continuous processes of dispossession
- Indigenous nations(Haudenosaunee) never ceded sovereignty

Core tension

- Crown authority VS Indigenous governance systems

Reframes disputes from “historical issues” to present day power struggles



Limitation of Policy and Governance

Frameworks for States



Particular Claims Procedure:

- Deals with breaches of treaties
- Put monetary recompense ahead of the restitution of land

Models of co management

- Displayed as cooperative frequently uphold uneven power and state control
- Policies change legal/administrative problems and sovereignty issues

Restitution and Structural Constraints

How Restitution Works

Restitution is a multi stage process:	Shaped by:	State frameworks prioritize:	Result
Dispossession ↓ Claims ↓ Negotiation ↓ Transfer ↓ Governance	Political constraints Strict evidence requirements Competing land interests	Property rights Economic stability	Limited and controlled forms of justice

Gaps, Voices, and Implementation Issues

What's Missing?



Research + Policy focus on:

Limited Inclusion of:

Time + Markets

Courts

Law

State institutions

Haudenosaunee governance

Indigenous legal traditions

**Gap between policy and
Practice:**

Reconciliation promised by
slow, constrained

Make dispossession seem
“historical”

Mask colonial origins of land
ownership



Why This Matters and Decolonial Insight

Re - evaluating Land Governance

- Present methods handle claims without altering hierarchies of power

Indigenous viewpoints:

- Land = relational, connected to identity + accountability

Decolonial Strategy:

- Disputes the ownership of land
- Denies that compensation is adequate
- Emphasizes self determination, consent and sovereignty

Rather than ending dispossession, restitution frequently perpetuates governmental authority

Key Concepts

Six Nations of the Grand River

Kaswenta (Two-Row Wampum):

- A Haudenosaunee framework for peaceful co-existence symbolizes two vessels (a canoe and a ship) travelling side by side without interfering in each other's customs (Sultana et al., p. 1, 2024).



Resurgence:

- Reclaiming Indigenous midwifery at the Six Nations Birthing Centre
- Application of traditional laws. (Sultana et al., 2024, pp. 8-10).

The Westphalian

Principle:

- The non-interference in states' internal affairs
- The League of Nations lacked jurisdiction over Indigenous issues (Belanger, 2007, pp. 37-40).



Hereditary Council:

- The traditional governing body of the Six Nations derives its authority from the Great Law (Confederacy Constitution). (Belanger, 2007, pp. 32-35)



Silver Covenant Chain:

- An alliance of friendship and reciprocity.
- Leaving each other autonomous.

Academic Literature Lead



The 4Rs:

- Researchers must adhere to Respect, Relevance, Relationality, and Reciprocity to ensure the partnership is mutually beneficial (Sultana et al., 2024, p. 16)



Co-Management / Co-Creation: Collaboration between Indigenous communities, Universities/scientists

- collaboration between Indigenous communities and Western scientists.
- practiced through Two-Eyed Seeing.
- This approach aims to prevent the exploitation or whitewashing of by ensuring Indigenous communities define priorities and lead the design of curriculum and tools
- The framework strictly follows Ownership, Control, Access, and Possession (OCAP), ensuring that the Six Nations community retains full rights to the data. (Sultana et al., 2024, p. 16).



Theoretical Debate: Westphalian vs. Relational Sovereignty

- **Westphalian Sovereignty:** Asserts state authority and territorial integrity, treating Indigenous affairs as domestic issues to prevent external interference (Belanger, 2007, pp. 30, 38).
- **Relational Sovereignty:** Based on historic treaties (like the Silver Covenant Chain) that establish a nation-to-nation relationship. (Sultana et al., p. 5, 8, 2024).



Key Concepts

Silver Covenant Chain:

- A diplomatic framework dating back to 1618 that established an alliance of friendship and reciprocity
- organized their discourse without merging the two worlds, leaving each autonomous



Indigenous Research Methods (IRMs):

- These methods place Indigenous worldviews at the center, focusing on relationality, decolonization, and the interconnectedness of all creations.



Kaswenta (Two-Row Wampum):

- framework for peaceful co-existence.
- This symbolizes two vessels (a canoe and a ship) traveling side-by-side without interfering in the other's internal laws or customs.



Storytelling: Used in IRM's

- Utilized as a formal method of data collection and resistance.
- storytelling is viewed as a way to reclaim Indigenous sovereignty and transfer knowledge orally.



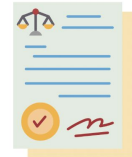
Key Concepts

Hereditary Council:

- The traditional governing body of the Six Nations that derived its authority from the Great Law
- Federal attempts to replace the traditional Six Nations governance system with a state-controlled structure.
- It was the primary target of Canadian civilizing policies and legislative efforts to force a municipal-style government.

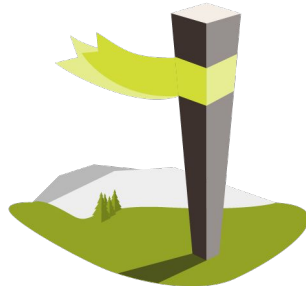
The 4Rs:

- researchers must adhere to Respect, Relevance, Relationality, and Reciprocity to ensure the partnership is mutually beneficial
- Used in Indigenous research methodologies to ensure that research is ethical, accountable, and grounded in good relationships rather than extractive practices.



Land Dispossession

- The process of removing Indigenous control over territory, including policies like the Soldier Settlement Act.



Settler Colonial Governance

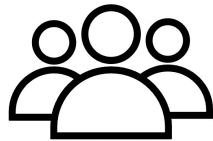
- The Canadian state's efforts to control and restructure Indigenous political systems
- including replacing the hereditary council with an elected system.

Indigenous Diplomacy

- The use of international political relationships and negotiation (e.g., League of Nations, European states) to assert Indigenous rights and recognition.

Indigenous Knowledge Traditional Ecological Knowledge (TEK)

- Based on observation and intergenerational learning
- Strong relationship with land and community
- Dynamic and lived (constantly evolving)



Western Knowledge

- Focuses on objectivity and measurement
- More structured and institutional



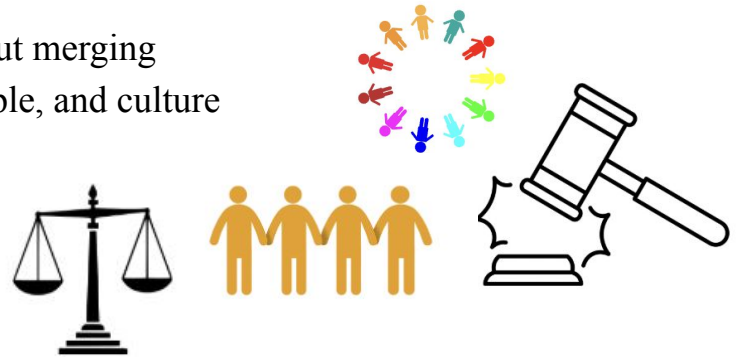
Co-Creation (Bridging Both)

- Two-Eyed Seeing: using both knowledge systems together
- Emphasizes respect, balance, and ethical collaboration
- Indigenous communities lead priorities to prevent exploitation



The Importance of these Key Concepts

- They show how Indigenous communities, like the Six Nations of the Grand River, maintain their governance, knowledge systems, and sovereignty despite colonial pressures.
- Indigenous communities have their own governance systems
- Sovereignty is actively defended against colonial control
- Research should be community-led and respectful
- Indigenous and Western systems can co-exist without merging
- Knowledge is relational and connected to land, people, and culture



SIX NATIONS LAND RIGHTS:

A Conflict of Perspectives

Indigenous Perspective

Self-Determination:

Right to govern own land
Sovereignty is ongoing

Stewardship:

Land = shared responsibility
Focus on future generations

Consent:

Must have real decision-making power
Consultation alone is not enough

View of Land:

Cultural, relational, collective
Not just property

State Perspective

Jurisdiction:

Land treated as domestic legal issue
Crown holds authority

Funding Control:

Claims resolved through compensation
Land rarely returned

Consultation:

Input without final decision power
State retains control

View of Land:

Economic asset
Focus on property + stability

Core Conflict

Indigenous: Sovereignty + Stewardship
State: Law + Compensation
Land disputes persist because these perspectives do not align



Co-Creation and Analysis



Roadmap:



Part 1:

Thematic analysis:

- Self-determination
- Stewardship
- Mistrust of state governance



Part 2:

Power and governance analysis

- Jurisdictional limits
- Funding control
- Consultation vs. consent
- Negotiation vs. sovereignty

Thematic analysis:



1. Self- determination:



- A long-standing political position rooted in treaty relationships and defended across eras—from Joseph Brant and the 1822 delegation to Chief Deskaheh, CBPR, Kaswenta, and contemporary litigation.

2. Stewardship:



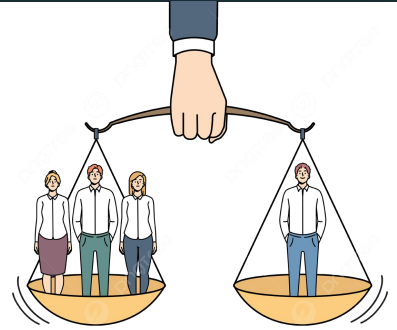
- Land is framed as relational responsibility rather than commodity.
- Indigenous research methods, storytelling, and relational accountability contrast with state logics of property, compensation, and legal settlement.

3. Mistrust of State Governance :



- A repeated gap between rhetoric and practice:
 - allyship vs. dispossession
 - protection vs. exploitation
 - sovereignty vs. control
 - produces a distrust of state-led governance arrangements.

Power and governance analysis:



Jurisdictional Limits:

- The state frames Indigenous land issues as internal matters.
- Westphalian sovereignty, Crown legal authority, and historical restrictions on land sales narrow the space for recognizing parallel sovereignties.

Funding Control:

- Claims are translated into financial compensation while land is rarely returned.
- This shifts injustice into a managed fiscal problem and preserves state control over territory.

Consultation vs. Consent:

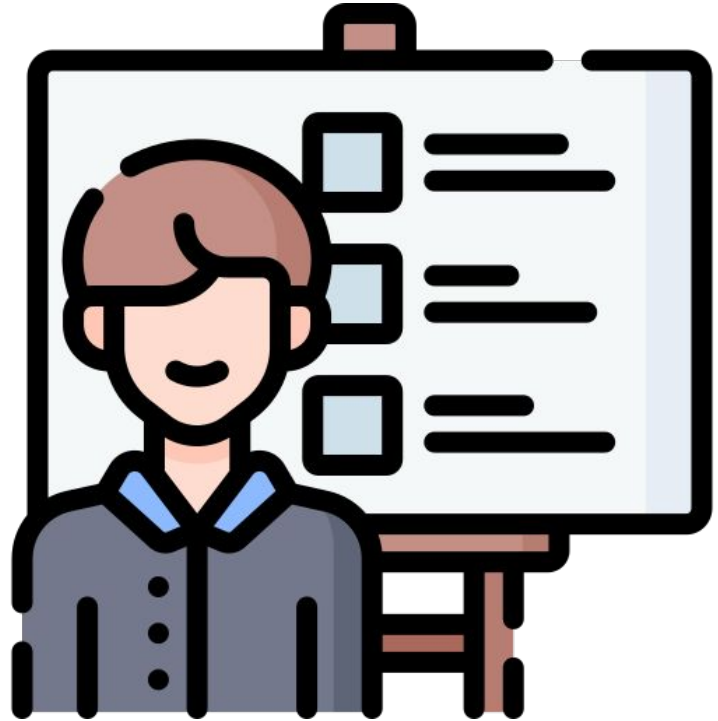
- Consultation invites input but usually leaves decision-making power with the state.
- Indigenous governance frameworks emphasize free, prior, and informed consent with real authority over outcomes.

Negotiation vs. Sovereignty:

- Provincial settlement strategies protect private property, minimize disruption, and avoid full restitution.
- Negotiation manages disputes without recognizing Indigenous sovereignty.

Core Takeaway:

- The issue is not only historical. It is structurally ongoing:
 - Indigenous assertions of sovereignty and stewardship persist, while state systems continue to manage them through jurisdiction, funding, consultation, and negotiated containment.



CONCENTRIC POWER CIRCLES

The Target acts as an amazing visual aid to the issues of what voices are being heard, and therefore whose voices get to make an impact in the power dynamics of Canada



Whos Voices are Centered?

- Ontario Provincial Policies work to center private landowners
- The province does this in the claim that it's in the best interest of economic stability and property rights
- The province does not seek to centre voices outside of Queen's Park

Community Defined Goals

- Indigenous communities have been fighting for the right of self-determination and be recognized as self-governing nations
- There are also a need to provide indigenous communities informed consent as there has been a historical issue of asking for consultation during development rather than asking for the consent
- Calls for a return to the Silver Covenant Chain which was a diplomatic framework established by the Iroquois and the at the time Dutch powers, a system that operated on the acknowledgement of two systems and worked to keep them each autonomous

Colonial Assumptions

- The Canadian government uses the idea of compensation for any claims that Indigenous communities have about the government not meeting their promises (Specific Claims Policy)
- Thus, the government looks to treat issues of sovereignty as injustices of finances and legality

Positionality

- This work is so important to research and highlight because this is an injustice that is still impacting and affecting Indigenous peoples today
- This is because settler colonialism works as an ongoing structure rather than a fixed structure of the past
- A decolonial approach is so important to how we see land rights, because it works to position land disputes as an ongoing process of dispossession instead of isolated conflicts

Information Analysis



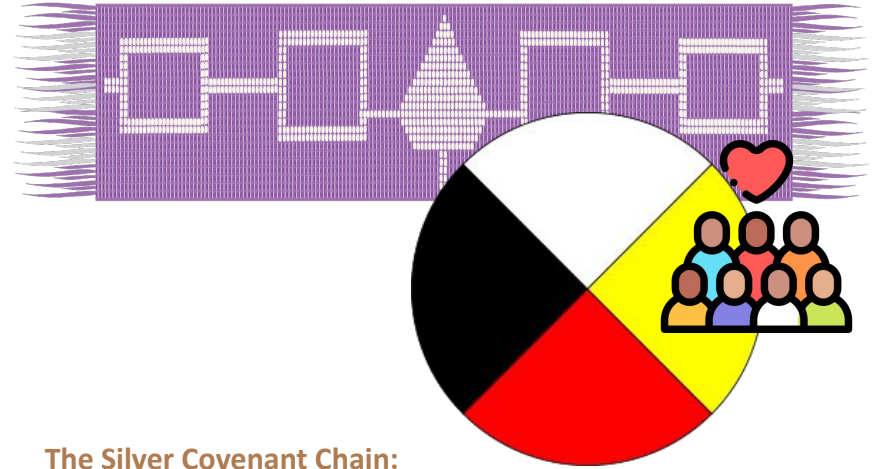
Community Defined Goals

Relational Sovereignty:

- The Haudenosaunee are a sovereign nation that require full control over their land

True Consent:

- Moving beyond simple state “consultation” to demand free, prior, and informed consent with



The Silver Covenant Chain:

- Working to return and restore the foundational diplomatic principles that promote peaceful coexistence

History-Based Understanding:

- Working to ground land claims and any progresses made within the ongoing historical context of Indigenous resistance

Positionality & Frame

The Institutional Lens:

- Approaching this research from a typical Political Scientist with a colonial framework risks analyzing power strictly through the settler-state apparatus

Reframing the Narrative:

- The goal is to avoid an “extractive academic gaze” by explicitly grounding our analysis in Haudenosaunee community knowledge

The Urgency of Action:

- Failing to effectively name, call out, and address the historical injustices towards Indigenous people allows history to repeat itself



Thank you for listening

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